

25STLC03488 25STLC03488

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-24

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Case Number: 25STLC03488 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Wayne Roby's Motion to

Strike, or Alternatively, Order the Defendant to Retain Counsel is denied as to

the request to strike Defendant's General Denial and granted as to the request

that Defendant retain counsel.

The Court sets an Order to Show

Cause Re: Status of Defendant Khanna

Enterprises, Ltd. dba Sheraton Agoura Hills' Legal Representation for

07/22/2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

ANALYSIS:

Plaintiff Wayne Roby ("Plaintiff") filed the instant action

against Defendant Khanna Enterprises,

Ltd. dba Sheraton Agoura Hills ("Defendant") on April 30, 2025. Proof of

service of the Summons and Complaint was not filed until October 1, 2025. Defendant filed a General Denial on October

30, 2025.

Plaintiff filed the instant Motion to Strike, or

Alternatively, Order the Defendant to Retain Counsel on March 30, 2026. Plaintiff

served the Motion on Defendant by first-class mail on the same day. No opposition

has been filed to date.

Discussion

The Motion to Strike, or Alternatively, Order the Defendant

to Retain Counsel is brought pursuant to Code of Civil Procedure section 436 on

the grounds that Defendant, despite being a corporation, was not represented by

an attorney at the time the General Denial was filed. Instead, the Denial is

signed by "Rodney O. Hurt," with no indication that individual is a licensed

attorney. (General Denial, filed 10/30/25, p. 1.)

Motions to strike in the Limited Civil Court may only

challenge pleadings on the basis that "the damages or relief sought are not

supported by the allegations of the complaint." (Code of Civ. Proc., § 92,

subd. (d).) The instant Motion does not pertain to whether the damages or

relief sought are supported by the allegations, and therefore, cannot be raised

in this Court.

Plaintiff, however, alternatively

asks that the Court order Defendant to retain counsel. It

is black letter law that a corporation cannot represent itself in court. (Clean

Air Transport Systems v. San Mateo County Transit Dist. (1988) 198

Cal.App.3d 576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court

(1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as

separate from their owners, including partnerships and unincorporated

associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at

578.) The Court finds Defendant filed the General Denial without proper legal

representation and cannot appear without an attorney going forward. The Court sets an order to show cause on the

date indicated below. If a Notice of Appearance

of counsel is not filed, or counsel does not appear on Defendant's behalf at

the show-cause hearing, the Court will strike Defendant's Answer. Defendant is advised that failure to

retain counsel may ultimately result in a Defendant's default being entered and

a default judgment against Defendant.

Conclusion

Plaintiff Wayne Roby's Motion to

Strike, or Alternatively, Order the Defendant to Retain Counsel is denied as to

the request to strike Defendant's General Denial and granted as to the request

that Defendant retain counsel.

The Court sets an Order to Show

Cause Re: Status of Defendant Khanna

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Moving party to give notice.